

IN THE UNITED STATES DISTRICT COURT  
FOR THE NORTHERN DISTRICT OF TEXAS — FORT WORTH DIVISION  
*Copeland v. Weinstein Management Co., Inc., et al.*

EXHIBIT

25

**Plaintiff's Motion to Strike Unauthorized Amicus  
Brief, filed May 8, 2026 in 236-363132-25**

**Legal Element Supported:**

Plaintiff's protected activity under § 3617 / § 12203(b)

**Verified Complaint Reference:**

¶ 84

236-363132-25

FILED  
TARRANT COUNTY  
5/8/2026 10:31 AM  
THOMAS A. WILDER  
DISTRICT CLERK**NO. 236-363132-25****KATHRYN COPELAND,  
Plaintiff****v.****KELLY DECKER, individually  
And d/b/a KELLY DECKER  
LAW, PLLC, and  
formerly d/b/a DECKER POOLE,  
jointly and severally,  
Defendants**§ **IN THE DISTRICT COURT**  
§  
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§  
§ **236<sup>th</sup> JUDICIAL DISTRICT**  
§  
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§  
§ **TARRANT COUNTY, TEXAS**

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**MOTION TO STRIKE UNAUTHORIZED AMICUS BRIEF FILED BY WMCI  
DALLAS X, LLC AND WEINSTEIN MANAGEMENT CO., INC., AND  
NOTICE OF FEDERAL INTERFERENCE WITH ADA RIGHTS**

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**TO THE HONORABLE JUDGE OF THE 236TH JUDICIAL DISTRICT  
COURT:**

Plaintiff Kathryn Copeland moves to strike the purported 'Amicus Brief' filed by WMCI Dallas X, LLC and Weinstein Management Co., Inc. ('Weinstein') on May 6, 2026. Weinstein is not a party to this proceeding and has no recognized right to file in this case. Their stated purpose — expressly set out in their own brief — is to protect their litigation interests in a separate lawsuit they are prosecuting against Plaintiff in the 141st District Court. That is not a legitimate amicus purpose. It is an attempt by adverse litigation opponents to inject their preferred factual narrative into a proceeding they have no standing to enter.

The brief should be struck from the record, disregarded in its entirety, and Plaintiff should be awarded her reasonable attorneys' fees and costs in having to respond to it.

**I. AMICUS BRIEFS HAVE NO STANDING AT THE TEXAS TRIAL COURT LEVEL WITHOUT LEAVE — WEINSTEIN SOUGHT NONE**

Amicus curiae practice in Texas is primarily an appellate doctrine. The Texas Rules of Appellate Procedure specifically authorize amicus briefs in appellate courts. See Tex. R. App. P. 11. There is no corresponding Texas Rule of Civil Procedure authorizing non-parties to file amicus briefs in trial courts as a matter of right. A non-party who wishes to participate in a trial court proceeding must seek leave to intervene under Texas Rule of Civil Procedure 60, which requires showing a justiciable interest in the outcome of the case.

Weinstein filed their brief without seeking leave of this Court. They are not parties. They made no motion to intervene. They cited no authority permitting a non-party to file an unsolicited brief in a trial court proceeding. The filing is procedurally improper on its face and should be struck on that basis alone.

## **II. WEINSTEIN'S STATED PURPOSE IS NOT A LEGITIMATE AMICUS PURPOSE**

Amicus practice exists to provide courts with relevant legal or factual perspective that the parties have not addressed — to assist the court, not to advance the filer's own agenda. Weinstein's brief states its purposes explicitly on page 3:

1. 'any determination by this Court as to any purported disability of Ms. Copeland should not be construed as a determination for any other purpose [including in the matters Weinstein is litigating]'; and
2. 'any determination of this Court as to any particular accommodation of which Ms. Copeland may be provided in this matter does not serve to deny, defeat, and/or encroach on Weinstein's rights in an appropriately adversarial motion practice' in Weinstein's own case.

Both stated purposes are exclusively about protecting Weinstein's interests in separate litigation — Cause No. 141-370402-25, 141st District Court, Tarrant County — in which Weinstein is the plaintiff and Copeland is the defendant. Weinstein is not filing to help this Court understand the law. They are filing to prevent findings in this Court from being used against them elsewhere. That is litigation strategy in their own case dressed up as amicus participation in someone else's.

Courts have consistently recognized that amicus briefs filed for the purpose of advancing the filer's own litigation agenda, rather than assisting the court, are improper. *See, e.g., Neonatology Assocs., P.A. v. Comm'r*, 293 F.3d 128, 131 (3d Cir. 2002) (Alito, J.) (amicus briefs appropriate when the filer has 'an interest in some other case that may be affected by the decision in the present case' only where the perspective genuinely aids the court, not merely to protect the filer's own litigation position). This brief does not aid the Court. It weaponizes this Court's docket to benefit Weinstein in the 141st.

### **III. THE FILING CONSTITUTES UNLAWFUL INTERFERENCE WITH PLAINTIFF'S FEDERAL ADA RIGHTS**

#### **A. 42 U.S.C. § 12203(b) Prohibits Exactly This Conduct**

The Americans with Disabilities Act expressly prohibits interference with a person's exercise of ADA rights:

'It shall be unlawful to coerce, intimidate, threaten, or interfere with any individual in the exercise or enjoyment of, or on account of his or her having exercised or enjoyed... any right granted or protected by this chapter.' 42 U.S.C. § 12203(b).

The implementing regulation, 28 C.F.R. § 35.134(b), extends this prohibition to both public and private entities: 'No private or public entity shall coerce,

intimidate, threaten, or interfere with any individual in the exercise or enjoyment of... any right granted or protected by the Act or this part.'

Plaintiff is a qualified individual with a disability who has exercised her right to request reasonable accommodations from this Court under Title II of the ADA. Weinstein — a private entity and Plaintiff's adverse opponent in separate housing litigation — has now filed an unsolicited brief in this proceeding specifically to oppose those accommodation requests and prevent a disability finding. Filing litigation-style opposition to a disabled party's court accommodation requests, by a non-party with adverse interests in separate proceedings, is 'interference' with the exercise of ADA rights within the meaning of § 12203(b). *See Freilich v. Upper Chesapeake Health, Inc.*, 313 F.3d 205, 217 (4th Cir. 2002) (§ 12203(b) reaches conduct that makes the exercise of ADA rights more difficult or costly).

#### **B. The Brief Is Also Retaliatory Under 42 U.S.C. § 12203(a)**

Section 12203(a) prohibits retaliation against a person because they 'made a charge, testified, assisted, or participated in any investigation, proceeding, or hearing' under the ADA. Plaintiff has filed ADA accommodation requests in multiple court proceedings, filed a federal civil rights action under Title II (*Copeland v. Tarrant County, et. al.*, No. 26-10389, 5th Cir.), and authored peer-reviewed scholarship on structural ADA compliance in state courts. Weinstein's brief was filed on May 6, 2026 — the day before Plaintiff filed emergency motions in the Court of

Appeals for the Second District of Texas and one day after a Fifth Circuit judge issued a dissent finding Plaintiff's ADA structural defect record sufficient for relief. The timing supports an inference that the brief was filed in direct response to Plaintiff's escalating ADA advocacy.

This conduct postdated Plaintiff's formal written cease-and-desist letter of April 8, 2026, in which Plaintiff explicitly notified Weinstein's counsel that third-party contacts intended to suppress her disability-rights advocacy would be treated as intentional interference. Weinstein filed the amicus brief twenty-eight days after receiving that notice. The letter established knowledge; the amicus filing established disregard.

### **C. The Same Conduct Constitutes Interference Under the Fair Housing Act**

Plaintiff has asserted disability discrimination claims against Weinstein under the Fair Housing Act in the 141st District Court proceeding. The FHA contains an identical interference provision: 'It shall be unlawful to coerce, intimidate, threaten, or interfere with any person in the exercise or enjoyment of... any right granted or protected by section 3603, 3604, 3605, or 3606 of this title.' 42 U.S.C. § 3617. By filing this brief to suppress disability findings that could support Plaintiff's FHA claims, Weinstein has interfered with Plaintiff's exercise of rights the FHA protects.

This conduct is actionable under § 3617 independently of any underlying FHA violation.

#### **IV. THE BRIEF CONTAINS MATERIAL MISREPRESENTATIONS NOW CONTRADICTED BY RECORD EVIDENCE**

Even setting aside standing and interference, the brief makes factual assertions that are demonstrably false on the current record and should not be allowed to stand uncorrected.

##### **A. 'No Documentation' Claim**

Weinstein states on page 2: 'even after litigating matters involving Copeland... there remains no identification of what psychiatric or medical disabilities Copeland actually has.' This is false. On April 10, 2026 — twenty-six days before Weinstein filed this brief — the Social Security Administration issued a fully favorable disability determination identifying twelve severe impairments. The ALJ specifically found Plaintiff 'will be off task 20% of the time, will need one hour of additional breaks, and will miss two days of work per month because of intracranial hypotension and cognitive impairment.' Weinstein either knew about this determination and chose to misrepresent the record, or failed to investigate before filing. Either way, the factual premise of their brief has collapsed.

Further, there has been medical documentation on file in the cases involving Weinstein since September 2025, including motions and exhibits in the record.



### **B. The Jury Trial Argument Is Legally Wrong**

Weinstein argues on pages 2 and 12-13 that Plaintiff's request for a jury trial in a separate proceeding contradicts her disability claims. This argument misunderstands both the ADA and basic civil procedure. Requesting a jury trial is a constitutional right — it is the invocation of a method of fact-finding, not a statement about one's physical capacity. A person with severe physical limitations can and should demand that a jury, not a judge, decide the facts in their case. Requesting a jury trial says nothing about whether that person requires reasonable accommodations to participate in the proceedings. The two questions are entirely independent. Indeed, the ADA requires courts to provide reasonable accommodations specifically so that disabled litigants can exercise rights — including jury trial rights — that non-disabled persons exercise without difficulty.

### **C. 'Filing Documents = No Disability' Argument Is Legally Wrong**

Weinstein argues that because Plaintiff has filed many court documents, she must be able to appear in person at hearings and depositions. This argument conflates two entirely different activities. Drafting legal documents at home — in one's own time, with rest breaks, away from courthouse noise and physical demands — is categorically different from traveling to a courthouse, sitting in a hard chair for hours, and engaging in real-time adversarial proceedings. The SSDI determination found Plaintiff's conditions impose limitations on sustained activity, attendance, and

concentration — exactly the kind of limitations that make unaccommodated in-person court appearances harmful while leaving some forms of remote cognitive work possible. This is not a contradiction; it is the nature of episodic and energy-limiting conditions.

## **V. PRAYER**

For the foregoing reasons, Plaintiff respectfully requests that this Court:

- (1) Strike WMCI Dallas X, LLC and Weinstein Management Co., Inc.'s Amicus Brief in its entirety and order that it be given no weight or consideration in any proceeding in this cause;
- (2) Order that the stricken brief may not be cited, referenced, or attached to any filing in this or any related proceeding by any party;
- (3) Find that the filing constitutes interference with Plaintiff's ADA rights under 42 U.S.C. § 12203(b) and retaliation under 42 U.S.C. § 12203(a);
- (4) Award Plaintiff her reasonable attorneys' fees and costs incurred in bringing this Motion, pursuant to 42 U.S.C. § 12203(c); and
- (5) Grant such other and further relief as this Court deems just and appropriate.

**Respectfully Submitted,**



**KATHRYN COPELAND**

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Fort Worth, Texas 76104

Tel: (817) 789-8498

Katie@CopelandLawTexas.com

***Plaintiff, Pro Se***

**Dated:** May 8, 2026

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**CERTIFICATE OF SERVICE**

I certify that a true and correct copy of the above and foregoing document was served on all counsel of record in accordance with the Texas Rules of Civil Procedure on May 8, 2026.

**Defendants' Counsel:**

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**Amicus Filers' Counsel (Wentz & Zavarelli, L.L.P.):**

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**KATHRYN COPELAND**

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